

McDonald v. Hoopp Realty Inc. operating as Northgate Shopping Centre et al.

[Indexed as: McDonald v. Hoopp Realty Inc.]

Ontario Reports

Ontario Superior Court of Justice,

Ellies J.

October 20, 2014

123 O.R. (3d) 49 | 2014 ONSC 6089

Case Summary

Civil procedure — Parties — Misnomer — Plaintiff in slip and fall action intending to sue company responsible for inspecting area where she fell but not initially knowing its identity — Plaintiff suing "John Doe Corporation" — Plaintiff subsequently discovering inspector's identity — Plaintiff permitted to amend statement of claim to replace "John Doe Corporation" with inspector's name on basis of misnomer — Statement of claim sufficiently identifying inspector as intended defendant — Inspector having actual knowledge of plaintiff's claim — Inspector not suffering non-compensable damage.

The plaintiff brought an action for damages arising from a slip and fall outside a shopping mall. She intended to sue the company responsible for inspecting the area where she fell, but did not at that time know its identity. Consequently, she named "John Doe Corporation" as a defendant. She subsequently discovered that G4S was the company responsible for inspecting the premises. She brought a motion for leave to amend the statement of claim to replace "John Doe Corporation" with "G4S".

Held, the motion should be granted. [page50]

This was a case of misnomer. The statement of claim sufficiently identified G4S as an intended defendant. Even if that conclusion was wrong, G4S had actual knowledge of the plaintiff's claim. G4S would not suffer any non-compensable prejudice if leave to amend were granted. There was no reason for the court to refuse to exercise its residual discretion to refuse the amendment.

Cases referred to

Lloyd v. Clark, [2008] O.J. No. 1682, 2008 ONCA 343, 52 C.P.C. (6th) 41, 44 M.P.L.R. (4th) 159, 165 A.C.W.S. (3d) 812; *Ormerod v. Strathroy Middlesex General Hospital* (2009), 97 O.R. (3d) 321, [2009] O.J. No. 4071, 2009 ONCA 697, 76 C.P.C. (6th) 238, 255 O.A.C. 174, affg [2008] O.J. No. 5339, 74 C.P.C. (6th) 298, 173 A.C.W.S. (3d) 699 (S.C.J.); *Spirito v. Trillium Health Centre*, [2008] O.J. No. 4524, 2008 ONCA 762, 69 C.P.C. (6th) 36, 246 O.A.C. 150, 302

D.L.R. (4th) 654, 171 A.C.W.S. (3d) 189; *Wirring v. Buffalo Group Developments Ltd.*, [2012] O.J. No. 6441, 2012 ONCA 810, **consd**

Other cases referred to

970708 *Ontario Inc. v. PCS Security Systems Inc.*, [2014] O.J. No. 3482, 2014 ONSC 4433 (S.C.J.); *Davies v. Elsbey Brothers Ltd.*, [1960] 3 All E.R. 672, [1961] 1 W.L.R. 170 (C.A.); *Dukoff v. Toronto General Hospital* (1986), 54 O.R. (2d) 58, [1986] O.J. No. 188, 8 C.P.C. (2d) 93, 35 A.C.W.S. (2d) 497 (H.C.J.); *Kitcher v. Queensway General Hospital* (1997), 44 O.R. (3d) 589, [1997] O.J. No. 3305, 73 A.C.W.S. (3d) 220 (C.A.), revg (1996), 27 O.R. (3d) 458, [1996] O.J. No. 23, 60 A.C.W.S. (3d) 260 (Gen. Div.); *Mazzuca v. Silvercreek Pharmacy Ltd.* (2001), 56 O.R. (3d) 768, [2001] O.J. No. 4567, 207 D.L.R. (4th) 492, 152 O.A.C. 201, 15 C.P.C. (5th) 235, 109 A.C.W.S. (3d) 880 (C.A.); *Moreau v. Northwestern General Hospital* (1988), 65 O.R. (2d) 128, [1988] O.J. No. 428, 27 C.P.C. (2d) 164, 9 A.C.W.S. (3d) 407 (Master); *O'Sullivan v. Hamilton Health Sciences Corp.*, [2011] O.J. No. 3161, 2011 ONCA 507, 2011 CarswellOnt 6073; *Wolfe v. Wyeth*, [2013] O.J. No. 5877, 2013 ONSC 7867, 117 C.P.R. (4th) 27, 236 A.C.W.S. (3d) 76 (S.C.J.)

Statutes referred to

Courts of Justice Act, R.S.O. 1990, c. C.43, s. 66(3) [as am.]

Limitations Act, 2002, S.O. 2002, c. 24, Sch. B, s. 21(1), (2)

Rules and Regulations referred to

Rules of Civil Procedure, R.R.O. 1990, Reg. 194, rules 5.04(2), 26.01

MOTION for leave to amend a statement of claim.

Wayne Stickland, for plaintiff.

Patrick Nadjiwan, for defendants Hoopp Realty Inc. operating as Northgate Shopping Centre, Morguard Investments Limited and Wal-Mart Canada Corp.

Amanda J.H. McBride, for proposed defendant G4S Secure Solutions (Canada) Ltd.

[1] **ELLIES J.**: — The plaintiff commenced an action on February 18, 2011 for damages relating to a fall that occurred outside a shopping mall on February 20, 2009. In her statement of claim, she named several corporations as defendants, including the owners and operators of the mall (the "mall defendants") and [page51] the store outside of which she fell. Among the defendants was John Doe Corporation ("Doe Corp."). The plaintiff now seeks leave to amend her statement of claim to replace Doe Corp. with G4S Solutions (Canada) Ltd. ("G4S") on the

basis that Doe Corp. was merely a "placeholder" and that she was only able to identify G4S as the party responsible for inspecting the area in which she fell after issuing her claim. She relies on the doctrine of misnomer in support of her request.

[2] Alternatively, the plaintiff relies on the principles of discoverability. She contends that the two-year limitation period has not expired for commencing an action against G4S because she learned of G4S's involvement for the first time during the examination for discovery of a representative of the mall defendants on May 16, 2013.

[3] G4S opposes the plaintiff's request. It argues that this is not a case of misnomer, but that the plaintiff is, instead, attempting to add a party after the expiry of the limitation period. G4S maintains that the plaintiff could have discovered its identity earlier with the exercise of reasonable diligence. Alternatively, if this is a case of misnomer, G4S submits that the plaintiff failed to sufficiently identify it as the intended defendant in her statement of claim. Further, G4S contends that it will suffer non-compensable prejudice if the order sought is granted. Lastly, G4S submits that the amendment should not be allowed on the basis of misnomer because the plaintiff was not diligent in seeking to identify the proper party or in bringing the motion now before the court.

[4] In my opinion, the motion should be granted on the basis of misnomer. The statement of claim shows that the plaintiff intended throughout to name the commercial enterprise that was responsible for inspecting the area in which she fell and the record shows that G4S had knowledge of the plaintiff's claim. G4S will suffer no prejudice that could not be compensated for by costs or an adjournment if the amendment is made and there is no other reason sufficient to justify refusing leave to amend.

Issues

[5] This motion raises the following issues:

- (1) Is this a case of misnomer?
- (2) If so, will G4S suffer non-compensable prejudice if leave is granted?
- (3) If G4S will not suffer non-compensable prejudice, is there any other reason to deny leave? [page52]
- (4) If this is not a case of misnomer, has the limitation period expired?

Analysis

Is this a case of misnomer?

Statutory framework

[6] Rule 26.01 [of the Rules of Civil Procedure, R.R.O. 1990, Reg. 194] governs amendments to pleadings in general. It provides that:

26.01 On motion at any stage of an action the court shall grant leave to amend a pleading on such terms as are just, unless prejudice would result that could not be compensated for by costs or an adjournment.

[7] Rule 5.04(2) of the Rules of Civil Procedure deals specifically with amendments relating to misnomer. It reads:

5.04(2) At any stage of a proceeding the court may by order add, delete or substitute a party or correct the name of a party incorrectly named, on such terms as are just, unless prejudice would result that could not be compensated for by costs or an adjournment.

[8] Rule 26.01 is mandatory upon the court; rule 5.04(2) is not. As a result, the court retains a residual discretion to refuse to grant an order under rule 5.04(2) even where the doctrine of misnomer applies and no non-compensable prejudice would result from an amendment: *Mazzuca v. Silvercreek Pharmacy Ltd.* (2001), 56 O.R. (3d) 768, [2001] O.J. No. 4567 (C.A.), at para. 30.

[9] Rules 5.04(2) and 26.01 appear to permit an amendment of the type sought in this motion without regard to any limitation period. However, a rule cannot operate in conflict with an Act (*Courts of Justice Act*, R.S.O. 1990, c. C.43, s. 66(3)) and s. 21(1) of the *Limitations Act*, 2002, S.O. 2002, c. 24, Sch. B (the "Act") precludes the addition of a party after the expiry of a limitation period. An exception is provided for in s. 21(2) of the Act, however. These subsections read:

21(1) If a limitation period in respect of a claim against a person has expired, the claim shall not be pursued by adding the person as a party to any existing proceeding.

(2) Subsection (1) does not prevent the correction of a misnaming or misdescription of a party.

[10] Strictly speaking, s. 21(2) is not necessary. In the case of misnomer, no limitation issues arise because the action has been commenced against the defendant within the limitation period, albeit incorrectly: [page53] *Spirito v. Trillium Health Centre*, [2008] O.J. No. 4524, 2008 ONCA 762, at para. 15; *970708 Ontario Inc. v. PCS Security Systems Inc.*, [2014] O.J. No. 3482, 2014 ONSC 4433 (S.C.J.), at para. 57.

[11] As the Court of Appeal noted in *Ormerod v. Strathroy Middlesex General Hospital* (2009), 97 O.R. (3d) 321, [2009] O.J. No. 4071, 2009 ONCA 697, at para. 27, in the case of a misnomer, the amendment made under rule 5.04(2) merely involves correcting the name of a party incorrectly named; it does not involve the substitution of one party for another. In *Kitcher v. Queensway General Hospital* (1997), 44 O.R. (3d) 589, [1997] O.J. No. 3305 (C.A.), the Court of Appeal made the point as follows, at p. 591 O.R.:

The appellants' motion sought to name the defendant correctly, *not to add him as a party*. [The intended defendant] can no more claim the benefit of a limitation period defence than he could if he had been properly named with the prescribed statutory period but not served until after the period has expired.

(Emphasis added)

[12] The issue, then, is how to distinguish a case of misnomer from one in which the moving party is, in reality, trying to add a party.

The "litigating finger" test

[13] In *Spirito*, the Court of Appeal held that the enactment of s. 21(2) of the Act did not affect the law of misnomer as it has been developed by the courts (para. 17). The starting point in the development of that law is the decision in *Dukoff v. Toronto General Hospital* (1986), 54 O.R. (2d) 58, [1986] O.J. No. 188, 1986 CarswellOnt 558 (H.C.J.). In *Dukoff*, Saunders J. adopted what soon became the standard test to determine whether a case is truly one of misnomer. Citing the English Court of Appeal decision in *Davies v. Elsby Brothers Ltd.*, [1960] 3 All E.R. 672, [1961] 1 W.L.R. 170 (C.A.), he set out (at para. 10) the following from the decision of Lord Devlin:

In English law as a general principle the question is not what the writer of the document intended or meant, but what a reasonable man reading the document would understand it to mean; and that is the test which ought to be applied as a general rule in cases of misnomer - - which may embrace a number of other situations apart from misnomer on a writ, for example mistake as to identity in the making of a contract. The test must be: How would a reasonable person receiving the document take it? If, in all the circumstances of the case and looking at the document as a whole, he would say to himself: "Of course it must mean me, but they have got my name wrong", then there is a case of mere misnomer. If, on the other hand, he would say: "I cannot tell from the document itself whether they mean me or not and I shall have to make inquiries", then it seems to me that one is getting beyond the realm of misnomer. [page54]

[14] This test has come to be known as the "litigating finger" test: *Moreau v. Northwestern General Hospital* (1988), 65 O.R. (2d) 128, [1988] O.J. No. 428 (Master), at para. 13.

[15] G4S argues that it could not know from the statement of claim that it was the intended defendant. I am unable to agree. In my view, the pleading in this case meets the litigating finger test, if only by a slight margin.

[16] Doe Corp. is first described in para. 6 of the statement of claim, which reads:

The Defendant, [Doe Corp.], is a commercial enterprise or business currently unknown to the Plaintiff and the identity of which cannot be presently ascertained.

[17] The remaining references to Doe Corp. apply to all of the defendants, whether specifically named or not. Paragraph 7 reads:

At all material times, the Defendants, through their respective agents, servants, employees or contractors, had the control, care, management and custody of design, construction, operation, inspection, and maintenance of Northgate Shopping Centre including the

responsibility for the inspection, repair and maintenance of all sidewalks and walkway areas adjacent to the exterior entrance to Wal-Mart (hereinafter referred to as "the Sidewalk").

[18] Paragraph 11 sets out the particulars of negligence against the defendants. It consists of a number of allegations, including an allegation that the defendants "failed to inspect the Sidewalk for the existence of ice and/or snow" (para. 11(e)).

[19] No doubt, more could have been done to identify G4S as the entity in charge of inspecting the area in which the plaintiff says she fell, as opposed to designing, building, operating, maintaining or repairing it. However, in my view, G4S would have known by reviewing the claim that it was an intended defendant. According to the evidence, G4S was the only party obligated by the terms of a contract with the mall defendants to perform "regular and continuous patrols of [the mall], including but not limited to the . . . interior and exterior" of the mall. Although the contract only required G4S to report "security[-]related issues", a representative of the mall defendants testified during his examination for discovery that, by convention if not by contract, G4S was also required to report maintenance-related issues, such as the presence of ice and snow. It is my view that, when reading the allegations contained in the statement of claim, set against the backdrop of the responsibilities it assumed under the contract, G4S would have known that the litigating finger was pointed at it.

[20] G4S argues that it was not obligated, by convention or otherwise, to report issues related to maintenance in the areas it inspected. Therefore, it contends, it could not know from reading [page55] the statement of claim that it was the intended defendant. However, this submission is not sufficiently supported by the evidence. The only evidence concerning this point is contained in the affidavit of a law clerk employed by the lawyers representing G4S, who refers to the contract itself and makes a vague reference to "G4S" advising that it was only "obligated to provide security and not maintenance investigation". In my view, this evidence is insufficient to undermine the evidence of the representative of the mall defendants, who had been the operations manager of the mall for over 25 years as of the date the plaintiff allegedly fell.

Knowledge of the claim by the intended defendant

[21] Even if I am wrong in my conclusion that the statement of claim in this case sufficiently identifies G4S as an intended defendant, it is my belief that the law in this area has recently developed such that shortcomings in the specificity of the pleadings may be made up for by actual knowledge of the plaintiff's claim on the part of the intended defendant.

[22] In a classic case of misnomer, the party seeking to amend its pleading is attempting to fix an unintentional error made in naming a party upon whom the statement of claim has actually been served. Thus, as it was first articulated, the litigating finger test was a test designed to determine if the pleading sufficiently identified the intended defendant and was a test conducted from the perspective of the intended defendant itself. This is obvious from the language of the test, *i.e.*, "a person receiving the document . . . it must mean me", etc.

[23] However, as Juriansz J.A. observed in *Ormerod*, "the law has evolved a great deal since the *Davies* case was decided" (para. 21). The litigating finger test is now frequently employed where the statement of claim has not been served on the intended defendant, for example, in placeholder cases such as this one. Indeed, *Dukoff* was a placeholder case. For a more recent

case dealing with the use of placeholders, see the decision in *Wolfe v. Wyeth*, [2013] O.J. No. 5877, 2013 ONSC 7867 (S.C.J.).

[24] In addition to being employed in cases where the intended defendant has not been served, the litigating finger test is no longer conducted exclusively from the perspective of the intended defendant itself. In *Ormerod*, for example, the appellants were physicians. The plaintiffs sought to substitute the name of one physician for that of another in the statement of claim, which had been issued more than a year after the intended defendant treated the plaintiff in an emergency department. The appellants argued that the intended defendant could not know [page56] from reading the statement of claim so long after the treatment in question that she was the intended defendant. The motion judge allowed the amendment on the basis that the intended defendant's insurers or lawyers would have known whether a mistaken name had been taken from the hospital records, which they had in their possession.

[25] The Court of Appeal in *Ormerod* upheld the motion judge's decision [[2008] O.J. No. 5339, 74 C.P.C. (6th) 298 (S.C.J.)]. With respect to the issue of knowledge on the part of the intended defendant, Juriansz J.A. wrote, at para. 25:

It seems to me that the appellants are attempting to forestall a development in the law that has already taken place. This court has already applied the misnomer approach, in three cases, in equivalent circumstances where the intended defendants, though not personally served with the originating process, were found to have had knowledge of the claim when it was issued. There is no basis to interfere with the motion judge's finding that this was a case of misnomer.

[26] In one of the most recent cases from our Court of Appeal dealing with the doctrine of misnomer, *Wurring v. Buffalo Group Developments Ltd.*, [2012] O.J. No. 6441, 2012 ONCA 810, the court wrote in a brief endorsement, at para. 10:

The doctrine of misnomer requires that: (1) the plaintiff intended to name the defendant; and (2) the intended defendant knew it was the intended defendant in relation to the plaintiff's claim.

[27] Although no citation for the foregoing statement was provided in *Wurring*, the excerpt set out above is no doubt based upon the Court of Appeal's earlier decision in *Lloyd v. Clark*, [2008] O.J. No. 1682, 2008 ONCA 343, one of the three cases referred to by Juriansz J.A. in the excerpt from *Ormerod*, also set out above. In *Lloyd*, the court held, at para. 4:

The case law amply supports the proposition that where there is a coincidence between the plaintiff's intention to name a party and the intended party's knowledge that it was the intended defendant, an amendment may be made despite the passage of the limitation period to correct the misdescription or misnomer.

[28] In *Lloyd*, the motion judge found that the plaintiffs had made a deliberate choice not to name the intended defendant initially and, therefore, held that it was not a case of misnomer. The Court of Appeal disagreed. In a brief oral decision, the court wrote, at para. 3:

We agree with the submission that on a fair reading of the statement of claim, it was clear that the plaintiff intended to name the Municipality having jurisdiction over and responsibility for the maintenance of the road on which the accident occurred. Moreover, there was clear evidence that Durham immediately knew that it was the intended defendant given the [page57]letter sent by Durham's insurance adjustor to the plaintiff's solicitor upon receipt of the statement of claim.

[29] As I read the second sentence in the excerpt above, the Court of Appeal was indicating that, even if it was not abundantly clear from the plaintiffs' pleading that they intended to name the municipality having jurisdiction over the road on which the accident occurred, the plaintiffs ought to be permitted to amend because the intended defendant knew of the plaintiffs' intentions to claim against it.

[30] The intended defendant in the present case also knew of the plaintiff's intention to claim against it at the time the claim was issued. On July 27, 2010, plaintiff's counsel (not Mr. Stickland) wrote to G4S, advising that his office had been retained by the plaintiff to "assist in obtaining fair and reasonable compensation for personal injuries she sustained as a result of a slip and fall at Northgate Shopping Centre in North Bay, Ontario on February 20, 2009". The letter specified the area in which the plaintiff fell and asked G4S to provide its insurer with a copy of the letter, which it did.

[31] Therefore, in my opinion, the intended defendant was sufficiently identified, both directly and in the statement of claim, to bring this case within the category of misnomer.

Will G4S suffer non-compensable prejudice?

[32] Rule 5.04(2) permits the court to grant leave to amend only where no prejudice would result that could not be compensated for by costs or an adjournment. The mere expiry of a limitation period is not relevant, as I have explained above.

[33] G4S argues that it has been prejudiced because of "lack of investigation". I am unable to accept that submission. On the evidence before me, G4S had early notice of and ample opportunity to investigate the plaintiff's claim. There is no issue that G4S received the plaintiff's lawyer's letter of July 27, 2010. Nor is there any issue that G4S provided that letter to its insurer. In fact, in a letter dated January 5, 2011 an adjuster with McLarens Canada wrote to the plaintiff's lawyer, indicating that "we are in the process of investigating the matter".

[34] G4S has not persuaded me that it will suffer any non-compensable prejudice if the amendment is allowed.

Should the court exercise its residual discretion to refuse the amendment?

[35] As I noted earlier, the court has a residual discretion to refuse leave to amend even in the absence of non-compensable [page58]prejudice: *Muzzuca*. In *Ormerod*, Juriansz J.A. discussed the scope of this residual discretion and the considerations upon which it should be exercised. He wrote (at paras. 31 and 32):

As I see it, as the scope of what the courts treat as a misnomer broadens, it is appropriate to take a wider view of the court's discretion to refuse the correction of a misnomer. A "classic"

misnomer, one in which the claim contains a minor spelling error of the defendant's name and is personally served upon the intended but misnamed defendant, prompts the application of a standard historically developed to remedy mere irregularities. Now that the concept of "misnomer" has been broadened to apply to a wider range of situations, the standard used to permit its correction should take into account the extent of its departure from mere irregularity in all the circumstances of the case.

The factors the motion judge applied in this case, whether the defendant was misled or was unduly prejudiced, are undoubtedly deserving of the greatest weight. As a general principle, these factors should be determinative. A general principle, however, is not an inflexible rule. Where the mistake in naming the defendant involves more than a mere irregularity or in any particular case with exceptional circumstances, the court may exercise its residual discretion under the rule to refuse to permit its correction.

[36] Clearly, the case at bar is not a classic case of misnomer. In this case, the plaintiff intentionally named Doe Corp. as a defendant, knowing that Doe Corp. was not the right name, and the claim itself was never served upon G4S. Therefore, the standard used to permit the amendment should reflect the extent of this departure from the norm.

[37] G4S argues that the court should exercise its residual discretion to refuse the amendment in this case for two reasons. It contends, first, that the plaintiff's lawyer could have properly identified G4S if he had exercised reasonable diligence and, because he did not, it was misled into believing that no claim was being advanced against it by the plaintiff. Second, G4S submits that the plaintiff should have brought this motion sooner than it did after learning of the identity of G4S in May of 2013. Regarding the first argument, if lack of diligence is one of the reasons permitting the exercise of a court's residual discretion to refuse an amendment in the modern law of misnomer, I refuse to do so. In my view, G4S's knowledge of the plaintiff's claim makes up for the effect of any lack of diligence on the part of her lawyer. There is no evidence that G4S acted in any way to its detriment, even if it was misled. With respect to the second argument, I am not persuaded that the delay in bringing this motion is sufficient to deny it.

Lack of diligence

[38] In *Dukoff*, Saunders J. denied leave to amend. He supported his decision by writing the following, at para. 16: [page59]

There are, in my opinion, sound policy reasons for the result. If, as here, the technique of using fictitious names could be used with little indication of the persons referred to and no evidence of any effort to determine their identity, the protection afforded by the limitation periods would be lost. That would be an undesirable result. All persons, including doctors and nurses, should be made aware of claims against them in a timely fashion and thereafter left in peace.

(Citations omitted)

[39] In this case, there is evidence of the efforts made to identify G4S as a defendant. In an affidavit sworn by one of the plaintiff's lawyers (not Mr. Stickland), counsel deposed (at para. 5):

At the time the Plaintiff's action was commenced, our office had no information to suggest that G4S Solutions (Canada) Ltd. had any involvement in the maintenance or inspection of the area where the Plaintiff slipped and fell on February 20, 2009. There was a general belief, however, that there may be an unidentified party that had a part in the inspection and/or maintenance of the subject area and as such, the Plaintiff named John Doe Corporation as a defendant.

[40] This evidence must be reconciled with the letter the lawyer wrote to G4S on July 27, 2010. The plaintiff's lawyer deposes that his office wrote to G4S on that date, "enquiring whether it had any involvement in the slip and fall": para. 3. I am unable to characterize the letter as an inquiry. The entire text of the letter reads:

Our office has been retained by Crystal McDonald to assist her in obtaining fair and reasonable compensation for personal injuries she sustained as a result of a slip and fall at Northgate Shopping Centre in North Bay, Ontario on February 20, 2009.

Ms. McDonald slipped and fell on the sidewalk area adjacent to the external structure that housed the Wal-Mart store. Our investigation into liability is continuing.

Kindly provide your insurer with a copy of this letter and have a representative contact the undersigned to discuss this matter further.

Thank you very much for your attention to this matter.

While the letter may have been a first step towards inquiring whether G4S had any involvement, it made no request for information in that regard.

[41] In a responding affidavit filed on behalf of G4S, a law clerk deposes that the adjuster I referred to earlier responded to the July 27 letter by attempting to reach the plaintiff's lawyer by telephone. He was unsuccessful. The adjuster followed up with a letter of his own on January 5, 2011. In the letter, the adjuster indicated that his office attempted to reach plaintiff's counsel on September 7, 2010 and left a message that they were [page60]in the process of investigating the matter. He indicated in his letter that his office would contact the plaintiff's lawyer once the investigation was complete and invited the plaintiff's lawyer to contact him in the interim, should he wish to do so.

[42] The responding affidavit also indicates that the adjuster received a voicemail message from the plaintiff's lawyer on May 2, 2011, which the adjuster returned the same day. The adjuster was again required to leave a message when he was unable to reach the lawyer. He tried again to reach the lawyer by phone on May 10, 2011, without success. The law clerk's affidavit and a letter from the adjuster to the law clerk dated April 30, 2014 indicate that the adjuster was required on May 10 "to leave another voicemail".

[43] The adjuster's evidence may not provide a complete picture, or even an accurate one. The plaintiff's lawyer was cross-examined on his affidavit. He testified that a law clerk from his office attempted to contact the adjuster by phone in February of 2011 and had to leave a message. This was not mentioned in the responding affidavit. More importantly, the plaintiff's lawyer testified during his cross-examination that his office did not have voicemail in 2011.

[44] Despite the disparity in the evidence regarding the type of message the adjuster left on May 10, 2011, there is no dispute that the adjuster's call was never returned. On behalf of the plaintiff, I was invited during argument to surmise that the adjuster for G4S would simply have denied liability, based on the evidence of the law clerk that G4S was not obligated to report maintenance-related issues. I do not believe I should engage in that sort of speculation regarding the evidence of the adjuster. Nor do I believe I need to. The plaintiff's lawyer has explained why he did not pursue his efforts to identify G4S through its adjuster.

[45] During cross-examination on his affidavit, the plaintiff's lawyer testified that he had previously been involved in another action against the mall defendants on behalf of a plaintiff who claimed damages relating to a fall which occurred in 2008. This is confirmed in G4S's responding affidavit, to which is attached a copy of the earlier claim. The claim was commenced by a notice of action dated January 15, 2010. It named G4S as one of the defendants. The plaintiff's lawyer testified that his office included G4S in that claim because of information that G4S had provided security services at the time of the fall. However, counsel for G4S advised the plaintiff's lawyer that G4S was not supplying security services to the mall. G4S delivered no statement of defence. The plaintiff in the earlier action settled her claim with two of the defendants in May 2011, the month in which the [page61] adjuster left his last telephone message, and the action continued as between those defendants and another. According to the plaintiff's lawyer, G4S was eventually let out of the action. As a result of these facts, the plaintiff's lawyer concluded that G4S was not supplying security services to the mall at the time of the present plaintiff's fall.

[46] G4S maintains that, because the plaintiff's lawyer never returned the adjuster's call, it was misled into believing that the plaintiff would not be pursuing a claim against it. Even if this was the case, there is no evidence that G4S suffered any prejudice as a result. It is unlikely that it did, given the early notice it received of the plaintiff's potential claim.

[47] While, in my view, the plaintiff's lawyer should have returned the adjuster's telephone call, his failure to do so ought not to result in the dismissal of this motion. Our Court of Appeal has cautioned against placing too much emphasis on the efforts of the moving party to identify the intended defendant. In *Kitcher*, the motion judge had set aside the decision of a master who had permitted the plaintiff to substitute the name of one doctor for that of "the Attending Emergency Physician" in his statement of claim. The motion judge commented that Kitcher's counsel could, "with minimal effort", have determined the name of the attending physician from hospital records which were in his possession prior to issuing the claim ((1996), 27 O.R. (3d) 458, [1996] O.J. No. 23 (Gen. Div.), at p. 459 O.R.).

[48] The Court of Appeal restored the master's decision. In the course of doing so, it held that the motion judge had erred by, among other things, "overemphasizing the appellants' solicitor's lack of diligence" (para. 5).

[49] Even if the plaintiff's lawyer's failure in this case to return the adjuster's telephone call can be characterized as a lack of diligence, I do not believe that it should result in the exercise of the court's residual discretion to refuse the amendment in these circumstances.

Failure to bring the motion earlier

[50] The plaintiff maintains that she did not learn the identity of G4S until the examination for discovery on May 16, 2013. This motion was commenced by way of a notice of motion dated March 24, 2014, and was first made returnable on April 17, 2014. G4S argues that the motion should have been brought earlier.

[51] Unexplained significant delay in bringing a motion to amend on the basis of misnomer may result in the exercise of the court's discretion to refuse the motion: *O'Sullivan v. Hamilton Health Sciences Corp.*, [2011] O.J. No. 3161, 2011 ONCA 507, 2011 CarswellOnt 6073, at para. 3. [page62] However, the delay in this case is not particularly significant, in my view, and it has been satisfactorily explained.

[52] Both in his affidavit and during his cross-examination, the plaintiff's lawyer indicated that he received written confirmation on August 1, 2013 from the lawyer representing the mall defendants that his clients would consent to the substitution of G4S for Doe Corp. Thus, in the period between May 16 and August 1, the plaintiff's lawyer was taking steps towards obtaining the relief sought in this motion. In my view, it was reasonable for him to attempt to obtain the consent of the other parties to the action before bringing the motion and the length of time it took to do so is not inordinate.

[53] With respect to the period from August 2013 to March 24, 2014, the plaintiff's lawyer testified during his cross-examination that settlement negotiations took place during that period of time, which involved offers being exchanged. When those negotiations failed to resolve the case, the plaintiff's lawyer moved forward with the litigation. It is reasonable that he would delay bringing the motion in those circumstances.

[54] Moreover, even if it might have been more prudent to bring the motion while these things were occurring, I do not find the delay between May 2013 and March 2014 to be particularly significant. The motion should not be dismissed on the basis of this delay.

Has the limitation period expired?

[55] Given my conclusion on the misnomer issue, it is not necessary for me to deal with this issue.

Conclusion

[56] This is a true, although not a classic, case of misnomer. The plaintiff intended throughout to name the party responsible for inspecting the area in which she fell. However, because of her lawyer's previous experience in a case in which G4S appeared to have been improperly included as a party, G4S was not specifically named.

[57] Further, G4S had timely notice of the plaintiff's claim. It had ample opportunity to investigate the plaintiff's claim while the evidence was still available. It suffered no prejudice that could not be compensated for in costs or an adjournment.

[58] Lastly, there is no good reason to exercise the court's residual discretion to refuse the request to amend. Although the plaintiff's lawyer ought to have returned G4S's insurer's telephone call, he has satisfactorily explained why he stopped [page63] pursuing G4S as an intended defendant. He has also satisfactorily explained why this motion was not brought earlier.

[59] An order shall issue, granting the plaintiff the relief requested in paras. 1 through 5 of the notice of motion.

[60] In addition, the parties have agreed to vary the timetable set out in the order of Rivard J. dated February 28, 2014. Therefore, that order shall be varied to provide that

- (a) G4S shall provide documentary disclosure, including an affidavit of documents and, if requested, copies of the documents listed in Schedule "A" thereto, within 90 days of the date of these reasons;
- (b) examinations for discovery of G4S and any re-examinations of the other parties shall take place within 180 days of the date of these reasons;
- (c) undertakings shall be fulfilled within 60 days of the completion of the examinations for discovery;
- (d) the action shall thereafter be set down for trial.

Costs

[61] Following argument, counsel provided the court with costs outlines. On behalf of the plaintiff, counsel provided two outlines. One relates to the time spent in preparing for and attending at the motion. That outline includes time spent by the lawyer that swore the affidavit. The other outline relates to the time spent by that lawyer for attending at the cross-examination on his affidavit.

[62] In my view, it would be inappropriate to award costs to the affiant lawyer. I was provided with no authority by which a court may award costs for a witness other than an expert witness. The affiant was not appearing as an expert, but as a fact witness.

[63] As for the remaining costs, I see no reason to award anything other than partial indemnity costs to the plaintiff, who was the successful party. Excluding the costs sought for the affiant lawyer, the partial indemnity costs of the plaintiff total \$3,600.06, including HST and disbursements. These are fair and reasonable. They are comparable to the partial indemnity fees the defendant would have sought if it had been successful.

[64] Therefore, the defendant shall pay costs to the plaintiff for the motion in the amount of \$3,600.06.

Motion granted.